

24STCV15289 24STCV15289

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-11

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C310%2C08%2F11%2F2026

Source SHA-256: 54abd32807bddbd94fd4b8e80ef26c45e7ab90ff8e0e85d36263729ec3ee64a9

Case Number: 24STCV15289 Hearing Date: August 11, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 11, 2026

Case Name: Cash v. Boutique Hostel, et al.

Case No.: 24STCV15289

Matter: Motion to Vacate Admissions

Moving Party: Plaintiff Trevor Cash

Responding Party: Defendant Paul Jinhyuk Byun

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On December 3, 2025, the Court granted Defendant Paul Jinhyuk Byun's motion to deem his requests for admission admitted as against Plaintiff Trevor Cash.

Plaintiff now seeks to set aside these admissions.

Code Civ. Proc. §§ 2030.290(a), 2031.300(a), 2033.280(a) provide that the Court may relieve a party from its waiver of objection when “(1) The party has subsequently served a response that is in substantial compliance with [the Code of Civil Procedure, and] (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.”

The Court finds that these admissions should be set aside because responses to the RFAs were actually served before the December 3, 2025, motion hearing. The parties should meet and confer on these responses.

The Motion is granted. The admissions are vacated.

Moving party to give notice.